



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT 31 1995

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 10957
(SECOND REVISION)

EXPIRATION DATE: October 31, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Rhône-Poulenc Basic Chemicals Company
Shelton, Connecticut
2. PURPOSE AND LIMITATION: This exemption authorizes the unloading of tank cars, coupled in a series, with the setting of the hand brake and blocking of a wheel in both directions on the first and last cars of a series of coupled tank cars and any other cars as required by the grade of the track, and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 107, Provisions entitled Packages, Containers, Shipments of Appendix B to Subpart B; 174.203(a); 174.67(a)(2).
5. BASIS. This exemption is based on Rhône-Poulenc Basic Chemicals Company's application dated September 19, 1995, submitted in accordance with 49 CFR 107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class or Division	Identification number	Packing Group
Sulfuric acid	8	UN1830	II
Sulfuric acid, spent	8	UN1832	II

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed are DOT Specification 111A100W2 tank cars meeting all DOT requirements. Tank cars must be equipped with efficient hand brakes which must comply with the Railroad Safety Appliance Standards in 49 CFR Part 231.

b. MARKING - The provisions of the paragraph entitled Packages, Containers, Shipments of Appendix B to Subpart B of 49 CFR Part 107 are hereby waived.

c. SAFETY CONTROLS

i. The hand brake must be set and at least one wheel blocked in both directions on the first and last car provided the grade of the track is less than or equal to 0.5 percent.

ii. For grades exceeding 0.5 percent, the following table shall be used to determine the percentage of additional hand brakes to be applied:

Grade (Percent)	Percentage of Cars to Have Hand Brakes Applied
$> 0.5 \leq 0.6$	17
$> 0.6 \leq 0.7$	20
$> 0.7 \leq 0.8$	23
$> 0.8 \leq 0.9$	26
$> 0.9 \leq 1.0$	29

8. SPECIAL PROVISIONS. None

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration is to be notified if any unusual incident occurs during the unloading, such as undesired movement of cars resulting in damage to property or personal injury, by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

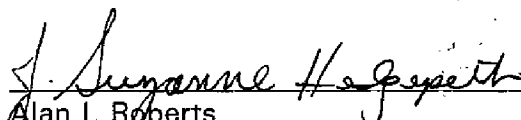
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

10/31/95
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,
Research and Special Programs Administration, Department of Transportation,
Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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